

25NWCV04639 25NWCV04639

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#13

SOLARES, ET AL. v. CITY OF BELL

CASE NO.: 25NWCV04639

HEARING: Tuesday, July 28, 2026, at 9:30 AM

Defendant CITY OF BELL's Demurrer to Plaintiffs' Complaint
is SUSTAINED without leave to amend.

Moving Party to give notice.

Background

On December 30, 2025, Plaintiffs MARIA ANTONIA SOLARES, an individual, as surviving spouse and heir of JOSE LUIS ARIAS BARRIENTOS; JOSE LUIS ARIAS JR.; ADRIANA ELIZABETH ARIAS; MARLENIE JUDITH ARIAS; LESLY MARIBEL CASTREJON; LILIAN PETRONA PEREZ; AND BYRON STACEY SOLARES ("Plaintiffs") filed this action against Defendants CITY OF BELL and DOES through 50, inclusive.

Plaintiffs' alleges the following causes of action:

(1) Dangerous

Condition of Public Property;

(2) Survival

Action;

(3) Negligence
(Wrongful Death)

On February 13, 2026, Defendant CITY OF BELL ("Defendant")
filed the instant demurrer.

Survival Action

Defendant demurs to Plaintiffs' Survival Action claim
arguing that Plaintiffs failed to present their Survival Action claim in
accordance with the Government Claims Act.

A public entity is not liable for injury, whether such
injury arises out of an act or omission of the public entity or a public
employee or any other person except as provided by statute. (Gov. Code
§815(a).) Because all public entity liability is limited and statutory, a
heightened pleading standard applies: every fact material to the existence of
statutory liability must be pleaded with particularity. (City of Los Angeles
v. Superior Court (2021) 62 Cal.App.5th 129, 138.) Thus, a Plaintiff
must plead a statute
that authorizes liability to state a claim against a public
entity. (Ibid.)

"Except as provided in Sections 946.4 and 946.6, no suit for
money or damages may be brought against a public entity on a cause of action
for which a claim is required to be presented in accordance with Chapter 1
(commencing with Section 900) and Chapter 2 (commencing with Section 910) of
Part 3 of this division until a written claim therefor has been presented to
the public entity and has been acted upon by the board, or has been deemed to
have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3
of this division." (Gov Code § 945.4.)

"Where there has been an attempt to comply [with
the claims statute] but the compliance is defective, the test of
substantial compliance controls. Under this test, the court must ask whether
sufficient information is disclosed on the face of the filed claim 'to
reasonably enable the public entity to make an adequate investigation of the
merits of the claim and settle it without the expense of a lawsuit.'" Wood
v. Riverside Gen. Hosp. (1994) 25 Cal. App. 4th 1113, 1118.)

Plaintiffs represented that they would assert a wrongful death claim in their Government Claim Forms. (RJN Ex. A.) Plaintiffs did not represent decedent's estate would file a survival action.

In *Nelson v. County of Los Angeles*, the Court held:

Since Dwyane's estate did not file a claim, and since there is nothing in Mrs. Nelson's claim to suggest it was filed in anything other than her individual capacity, and since the damages described in the claim were for "loss of a son" (with no mention of any damage incurred by Dwayne before his death), the trial court properly resolved survivorship claims against Mrs. Nelson.

(*Nelson v. County of Los Angeles* (2003) 113 Cal.App.4th 783, 797.)

Here, Plaintiffs' claims do not suggest they will file a claim on decedent JOSE LUIS ARIAS BARRIENTOS' behalf. Indeed, each Plaintiff asserts a wrongful death claim and not a survival action.

Plaintiffs contends the phrase "both economic and non-economic losses sustained as a result of the decedent's death" is enough to give Defendant notice of a survival action. Not so. This phrase does not give notice of decedent's pre-death damages. Moreover, like *Nelson*, there is nothing on Plaintiffs' claims to suggest they were filed in anything other than their individual capacities. Simply put, decedent's estate failed to file a claim.

Plaintiffs further argue that Plaintiff Maria Solares provided a statutory declaration, in compliance with CCP § 377.11, which allows a successor-in-interest to file a claim on decedent's behalf. This argument fails for the same reasons above. Plaintiffs did not indicate Ms. Solares would be filing a survival action on decedent's behalf on the Government Claim Form.

The Court also rejects Plaintiffs' argument that Defendant was required to inform Plaintiffs that their claim for was insufficient. A public entity's duty to notify a claimant that the claim form is defective presumes the defect is disclosed on the face of the form. (*Nelson*, *supra*, 113 Cal.App.4th at p. 798; Gov. Code § 910.8.) Here, the issue is that

Plaintiffs failed to file a claim on behalf of decedent's estate, not that Plaintiffs' claim is defective. Thus, Defendant's failure to object is inapposite. (See Ibid.)

Conclusion

Defendant's Demurrer to Plaintiffs Second Cause of Action is SUSTAINED without leave to amend. The Court does not find amendment can cure Plaintiffs' defect in their failure to present a survival action on their Government Claims Forms.

Defendant's Request for Judicial Notice is GRANTED. (Evid. Code. § 452(c).)